

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

COSCO SHIPPING LINES CO., LTD., *Respondent*.

DOCKET NO. 24-16

Served: May 5, 2025

ORDER OF: Linda S. Harris CROVELLA, *Administrative Law Judge*.

THIRD ORDER ON MOTION FOR ENLARGEMENT OF TIME

On April 25, 2025, pursuant to the April 11, 2025, Order on Motion to Dismiss, Complainant filed a Verified Amended Complaint (“Amended Complaint”). On April 30, 2025, Respondent filed a motion for enlargement of time to file an answer to the Amended Complaint (“Motion”). This is the third request for an extension of time in this proceeding. The motion was not filed “at least seven (7) days before the scheduled filing date” in compliance with 46 C.F.R. § 502.102(a), but Respondent states that it has reasonable grounds for filing less than seven days, namely, that the motion is not opposed, the Amended Complaint was filed at close of business on Friday, April 25, 2025, and “it took a few business days for Respondent to determine that some additional time would be necessary.” Motion at 1, n. 1. Respondent seeks 7 additional days to file an answer.

The motion asserts as good cause for the enlargement of time to file its answer that in addition to specifying the amount of damages it seeks in the amended complaint, Complainant made “other unauthorized changes to the complaint while also continuing to allege Counts II and III, which have been dismissed, resulting in confusion and additional time needed by Respondent to review and answer.” *Id.* at 2. Respondent further asserts that it will likely file a third-party complaint and include a counterclaim in its answer, and the management personnel with whom counsel must consult are located in China. *Id.*

Respondent need not respond to Counts II and III of the Amended Complaint, which were dismissed and should have been omitted. *See* Order on Motion to Dismiss at 8-14. It is sufficient to answer in regard to Count II and Count III, “Dismissed.” Any additions to the Amended Complaint beyond specifying the damages as ordered should be raised in the Answer.

Accordingly, good cause being found to enlarge the time for Respondent to file an answer, the Motion is **GRANTED**. It is

ORDERED that Respondent file its Answer on May 12, 2025.

To avoid further delay in this proceeding, no further extension requests will be entertained in relation to filing an answer to the Amended Complaint. In addition, the parties are again encouraged to stipulate to facts that are not in dispute, to engage with CADRS as soon as practicable, and to start discussions on a discovery schedule.

In terms of the sequential numbering of filings encouraged in the Initial Order and reiterated in previous orders on motions to extend, the numbering should relate to the type of action requested (here, a third request to extend or enlarge time).



Linda S. Harris Crovella
Administrative Law Judge